Smile Partners Australia - Mehta Orthodontics

MN-05014

Phase 1 Determination

Acquisition may be put into effect

20 June 2026

1. Determination and statement of reasons

Notified acquisition	Smile Partners (NSW3) Pty Ltd, a wholly owned subsidiary of Smile Partners Australia Pty Ltd, (together, for convenience, **SPA**) proposes to acquire 100% of the assets of Shrika Pty Ltd as trustee for Shrika (trading as **Mehta Orthodontics**) (the **Acquisition**).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, SPA, owns a network of independently branded orthodontic practices located across Australia and New Zealand. Its shareholding is dispersed across a number of investors, the largest proportion of which is controlled by Armitage Australia Pty Ltd, a private equity firm. SPA currently: • owns 13 orthodontic practice brands with 20 clinic locations in Australia, across Western Australia, New South Wales, Victoria and Queensland. This includes 2 orthodontic practices in the Hills District of north-western Sydney (Bachmayer Orthodontic Clinic and Brace5 Orthodontics). • provides management services pursuant to contractual arrangements with additional orthodontic practices in Australia. Only one of those practices owns practices located in NSW, which are outside of the Sydney metropolitan area. The target, Mehta Orthodontics, is an independent orthodontic practice located in Bella Vista, a suburb in the Hills District of north-western Sydney.
Overlap and relationship between the parties	SPA and Mehta Orthodontics (together **the Parties**) overlap in the supply of orthodontic services in the Hills District of north-western Sydney.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (**ACCC**) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the *Competition and Consumer Act 2010* (Cth) (the **Act**). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form, publicly available information and market feedback. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC

	makes the following findings: • Post-Acquisition, the merged firm would likely continue to face competition from multiple alternative suppliers of orthodontic services in the Hills District of north-western Sydney. • The Parties' combined market share of orthodontic services in the area is estimated to be low, and the increase in share arising from the Acquisition is estimated to be low.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act